

24NWCV04102 24NWCV04102

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-09-09

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Case Number: 24NWCV04102 Hearing Date: September 9, 2026 Dept: C

MAZARIEGOS vs NISSAN NORTH

AMERICA, INC., et al.

CASE NO.: 24NWCV04102

HEARING: 9/9/26

@ 9:30 AM

#8

TENTATIVE ORDER

Defendant Nissan North

America, Inc.'s Motion for Judgment on the Pleadings is DENIED.

Moving party to
give NOTICE.

Defendant Nissan North America, Inc. (Defendant) moves
for judgment on the
pleadings as to the first through third causes of action in Plaintiff DUNIA J.
MAZARIEGOS's (Plaintiff) Complaint. At issue is whether Plaintiff's Vehicle classifies
as a new motor vehicle under Song-Beverly Consumer Warranty Act.

Background

This is a lemon law

case. Plaintiff bought a used 2020 Nissan Kicks, having VIN No.: 3N1CP5CV3LL554561. (Compliant, ¶ 9.) Plaintiff also alleges that the Subject Vehicle was presented to a Nissan-authorized repair facility, that Nissan was unable to conform the vehicle to the applicable express warranty after a reasonable number of repair attempts, and that Nissan thereafter failed to provide the remedies alleged to be required under the Act. (Compl. ¶¶ 28–31.)

Trial is scheduled for September 30, 2026.

Legal Standard

A party may move for judgment on the pleadings.” (Code Civ. Proc. (CCP) § 438(b)(1). Where the pleadings are defective, “the defect may be raised by demurrer or motion to strike, or by motion for judgment on the pleadings.” (Coyne v. Krempels (1950) 36 Cal. 2d 257, 262.)

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.) “A demurrer tests the sufficiency of the complaint as a matter of law; as such, it raises only a question of law.” (Osornio v. Weingarten (2004) 124 Cal.App.4th 304, 316.) No matter how unlikely or improbable, the complainant’s allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604.) However, the Court does not need to assume the truth of “contentions, deductions or conclusions of law.” (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint,

and how that amendment will change the legal effect of the pleading. (Id.)

Discussion

Defendant moves for judgment on the pleadings.

Defendant moves on the grounds that the Subject Vehicle does not qualify as a “new motor vehicle” under the Song-Beverly Consumer Warranty Act (Song-Beverly) because it was purchased as a Certified Pre-Owned (CPO) vehicle. Defendant argues that pursuant to *Rodriguez v. FCA US LLC* [Rodriguez] (2024) 17 Cal.5th 189, CPO vehicles do not qualify as “New Motor Vehicles” under the Song-Beverly Act.

In *Rodriguez*, the Supreme Court of California held “that the phrase “other motor vehicle sold with a manufacturer’s new car warranty” — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act’s provisions distinguishing between new and used goods — means a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (*Rodriguez*, supra, 17 Cal.5th at p. 206.) The Supreme Court specifically “conclude[d] that a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2) ’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (Id., at p. 196.)

Plaintiff argues that Defendant’s arguments ignore *Kiluk v. Mercedes-Benz USA, LLC* [Kiluk] (2019) 43 Cal.App.5th 334.

Kiluk involved the sale of a CPO vehicle which was accompanied by an additional used vehicle warranty issued by the manufacturer in connection with the sale. (Id. at p. 336.) A jury found the defendant-manufacturer was liable under the SBA for breach of express and implied warranties. (Ibid.) The Court of Appeal affirmed this decision by concluding that “[a]lthough the Song-Beverly Act generally binds only distributors and retail sellers in the sale of used goods,...Mercedes Benz stepped into that role by issuing an express warranty on the sale of a used vehicle.” (Id., at p. 337.) The Court of Appeal reasoned:

Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer's obligations are the "same" as a manufacturer under section 1793.2.

(Id., at p. 340.) The Kiluk Court noted that the parties disputed whether the subject vehicle was a "new motor vehicle" under the Song-Beverly Act but determined that "even if the vehicle was not a "new motor vehicle" under Song-Beverly Act, Mercedes Benz was still liable under the used goods provisions of section 1795.5." (Ibid.)

Plaintiff argues that Rodriguez leaves open "situations involving used cars sold with a new manufacturer's warranty issued with that sale" and does not foreclose Song-Beverly Act protections "where the manufacturer has...issued a new warranty or played a substantial role in the sale of a used good." (Rodriguez, supra, 17 Cal.5th at p. 203.) Plaintiff argues that Kiluk is consistent with Rodriguez as it is repeatedly cited in Rodriguez.

Here, the Complaint specifically alleges that Defendant issued a new and full CPO warranty at the time of sale:

"[T]he Subject Vehicle was a certified pre-owned ("CPO") purchased as a CPO vehicle with an accompanying NISSAN NORTH AMERICA, INC.'s new and full CPO warranty, and therefore constitutes a "new motor vehicle" vehicle under the Act. These causes of action arise out of warranty and repair obligations of NISSAN NORTH AMERICA, INC. in connection with a vehicle that Plaintiff purchased and for which NISSAN NORTH AMERICA, INC. issued a written warranty. The warranty was not issued by the selling dealership." (Complaint, ¶9, *italics added*.) Thus, as alleged in the Complaint, the Subject Vehicle qualifies as a "new motor vehicle" under the Song-Beverly Act as interpreted by Rodriguez.

Accordingly, Defendant's motion for judgment on the pleadings is DENIED.